

DIRECTIVE PRINCIPLES OF STATE POLICY

Articles 36 – 51 / The "Conscience of the Constitution"

Borrowed from the Irish Constitution | Non-justiciable but fundamental in governance

- Headings & Definitions ● Explanations ● Highlighter = Key Facts 🎯 Exam Tip ✖ Common Mistake
🧠 Memory Trick

StudyPlanner



View:



Page-by-Page



Continuous Scroll

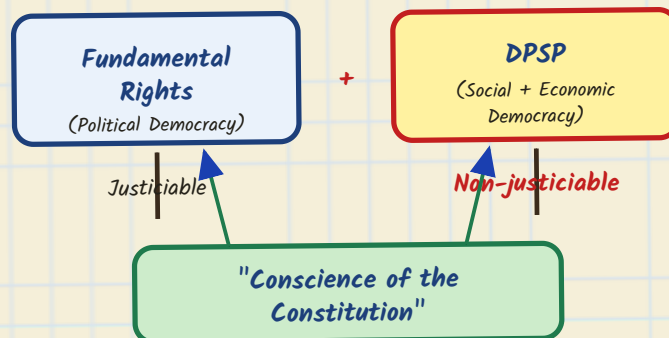


Print

WHAT IS DPSP + WHERE DID IT COME FROM?

Part IV, Articles 36 to 51 of the Constitution contain the Directive Principles of State Policy. This entire part — like the election of the President — was borrowed from the Constitution of Ireland.

Fig 1: Fundamental Rights vs DPSP



— Granville Austin & K.C. Wheare

Nature of DPSP

- DPSPs impose a **positive obligation** on the State (unlike some Fundamental Rights, which are largely negative/restraining) — the State is directed to do something.

- They are **non-justiciable** — meaning you **cannot go to court** to enforce them; there is no legal remedy if the State fails to apply them.
- Their purpose is to **establish a welfare State** and to build **social and economic democracy** — while our Fundamental Rights were aimed at establishing **political democracy**.



Memory Trick

FR = Political Democracy. DPSP = Social & Economic Democracy. Together they are the "conscience of the Constitution."

Ambedkar's Remarks

Dr. B. R. Ambedkar called the Directive Principles **"novel features"** of the Constitution. He also observed that these Directive Principles are similar in nature to the **"Instrument of Instructions"** that was issued to the Governor-General/Governors under the **Government of India Act, 1935** — instructing them on how to work for the people's welfare.

What was the "Instrument of Instructions"? (tap to expand) ▼

"DPSP is like a cheque payable by the bank at its own convenience." — K.C. Wheare

This means: you **cannot claim** these rights as a matter of legal right. The State (the "bank") applies them at its own convenience — if it wants to, it will; if not, it won't. **Granville Austin** (along with K.C. Wheare) together described Fundamental Rights and DPSP as the **"conscience of the Constitution."**

✗ Common Mistake

Don't think DPSPs are "useless" just because they're non-justiciable — Article 37 itself says they are **"fundamental in the governance of the country"** and it is the State's **duty** to apply them while making laws.

Parallel with Part III (Fundamental Rights)

Just like **Article 12** (definition of "State") and **Article 13** (laws inconsistent with FRs are void) come before the actual Fundamental Rights (Art 14–35), DPSP too opens the

same way:

Art 36: Definition of State →

Art 37: Non-justiciable, but fundamental →

Art 38 onwards: actual Principles

Memory Trick

Art 12 (defines State) : Art 13 (voids inconsistent laws) :: Art 36 (defines State) : Art 37 (non-justiciable but fundamental). Same pattern in both Parts!

Exam Tip

Remember the two names for DPSP's core idea in one line: **Non-justiciable** (K.C. Wheare's "cheque at the bank's convenience") + "**Conscience of the Constitution**" (Granville Austin / K.C. Wheare) + "**Novel features**" (Ambedkar).

Page 1 of 5

← Previous

Next →

ART 36-40: THE STORY BEGINS

Article 36 gives the **Definition of "State"** (same meaning as under Article 12). **Article 37** says the principles are **non-justiciable**, but still **fundamental in the governance** of the country, and it is the duty of the State to apply them in making laws.

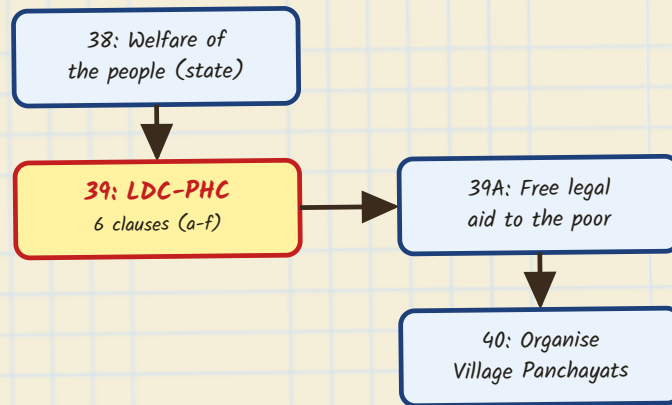
Article 38: The State shall strive to promote the **welfare of the people** by securing a social order in which justice — social, economic and political — informs all institutions of national life. (Clause 2, added later, says the State shall minimise inequalities in income, status, facilities and opportunities.)



Story to remember everything

To do good for the people, there was an **LDC (Lower Division Clerk)** who used to work in a **PHC (Public Health Centre)**. Just remember the keyword **LDC-PHC** — that's your anchor for Article 39 and everything that follows!

Fig 2: The LDC-PHC Story Begins (Art 38→40)



Article 39 – The Six "LDC-PHC" Clauses

The LDC-PHC decided to do good for the people. He first resolved their fighting by giving them **free legal aid**, then called a **Panchayat**. Article 39 lays down six principles of policy:

Letter	Principle
L	Adequate means of Livelihood for all citizens, equally
D	Distribution of material resources of the community for the common good
C	Operation of the economic system should not result in Concentration of wealth
P	Equal Pay for equal work, for both men and women
H	Health and strength of workers (men, women, children) not abused
C	Children given opportunities and facilities to develop in a healthy manner (added as clause (f))

Memory Trick

Six clauses of Article 39 = **L-D-C P-H-C** → the same "LDC PHC" keyword tells you both the story character AND the six sub-clauses of Article 39!

Article 39A – Free Legal Aid to the Poor

To help the people, the LDC-PHC first **resolved their cases** by giving them free legal aid. Article 39A directs the State to provide **free legal aid to the poor**, so that justice is

not denied to any citizen due to economic disability.



Exam Tip

Article **39A** = Free Legal Aid to the Poor. It sits right between Article 39 and Article 40 — don't confuse its number with Article 43A (participation of workers) which comes later!

Article 40 — Organisation of Panchayats

Next, the LDC-PHC formed a **Panchayat**, calling the whole village together to discuss their problems — lack of work, lack of education, no one helping each other. Article 40 directs the State to **organise Village Panchayats** and give them powers of self-government.



Common Mistake

Article 40 (Panchayats) is a **Directive Principle**, not a Fundamental Right — the actual detailed Panchayati Raj structure came much later through the **73rd Amendment (Part IX)**.

Page 2 of 5

← Previous

Next →



ART 41-44: WORK, WAGES + THE UCC

The villagers told the LDC-PHC: "There's no work, our children aren't educated, no one helps us." So the character kept working on their problems, one by one.

Article 41 — Right to Work, Education, Public Assistance

The State shall, within its economic capacity, make effective provision for securing the **right to work, to education, and to public assistance** in cases of unemployment, old age, sickness, disablement and other undeserved want.

Article 42 — Just, Humane Work Conditions & Maternity Relief

Where the villagers were working, the conditions were bad — 15-hour days! Article 42 directs the State to secure **just and humane conditions of work** and **maternity relief** — so a woman who is pregnant or has recently given birth gets both leave and support.



Memory Trick

Article 42 = "Just & Humane conditions of work AND Maternity relief" — two ideas bundled into ONE article!

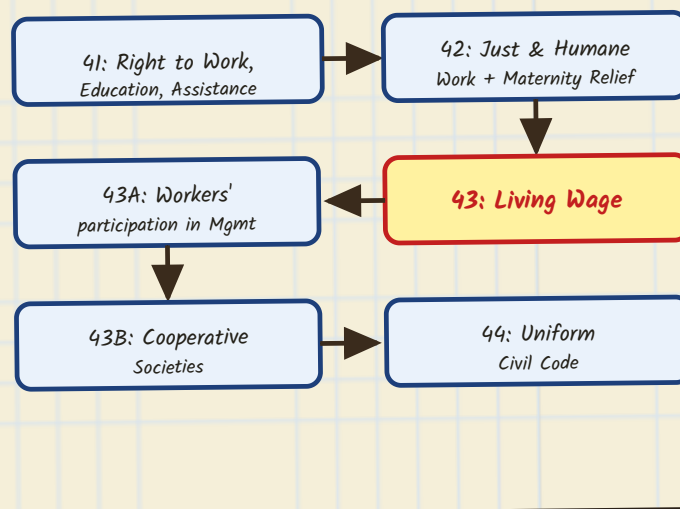


Article 43 — Living Wage

The conditions were fine, but was the pay enough to live on? Article 43 directs the State to secure to all workers a **living wage** and a decent standard of life, along with conditions ensuring leisure and social/cultural opportunities.



Fig 3: The Story Chain — Art 41 to 43B



Article 43A — Participation of Workers in Management

The LDC-PHC ensured one more thing: that workers get a say for the long run. Article 43A directs the State to take steps to secure the **participation of workers in the management** of industries, establishments or other organisations.

Article 43B — Promotion of Cooperative Societies

Article 43B directs the State to promote the **voluntary formation, autonomous functioning, democratic control and professional management of Cooperative Societies**.



Memory Trick

43 → 43A → 43B is one continuous family: **Living Wage** → **Workers' Participation in Management** → **Cooperative Societies**. All about workers' economic dignity!

Article 44 – Uniform Civil Code

Article 44 directs the State to secure a **Uniform Civil Code** for all citizens throughout the territory of India.



Memory Trick

4 = 4 looks perfectly equal on both sides → "44" = **Uniform Civil Code**!



Exam Tip

Article 43A and 43B were both **added later by Constitutional Amendments** (see Page 5) — they were not in the original 1950 Constitution.

Page 3 of 5

← Previous

Next →



ART 45-51: FROM CHILDREN TO WORLD PEACE

The LDC-PHC wanted to do good for the children next — but he realised the children of the **SC/ST community** in his area needed help first.

Article 45 – Early Childhood Care and Education

Originally, Article 45 provided for free and compulsory education for children aged **6 to 14 years**. The **86th Constitutional Amendment, 2002** moved that right into **Article 21A** as a Fundamental Right, and **changed the subject matter of Article 45 to**

Early Childhood Care and Education for children below 6 years



Common Mistake

Don't confuse Article 45 (now: Early Childhood Care, **0-6 years**) with Article 21A (Right to Education, **6-14 years**, a Fundamental Right, added by the same 86th Amendment)!

Article 46 – Promotion of SC/ST & Weaker Sections

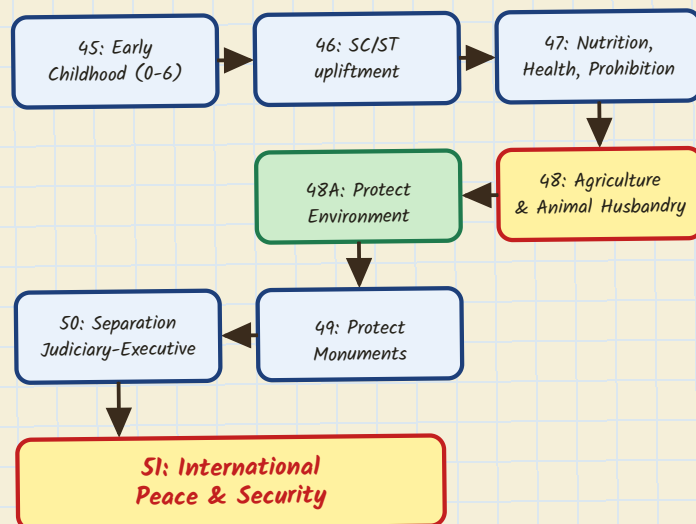
The State shall promote with special care the educational and economic interests of the SC/ST and other weaker sections, and protect them from social injustice and exploitation.

Article 47 – Nutrition, Public Health & Prohibition

He noticed the SC/ST community didn't pay attention to their health and drank a lot of toxic alcohol. So Article 47 directs the State to raise the level of nutrition and standard of living, improve public health, and bring about prohibition of intoxicating drinks and drugs injurious to health.



Fig 4: The Story Chain – Art 45 to 51



Article 48 – Agriculture & Animal Husbandry

As an alternative to alcohol, he promoted milk, agriculture and animal husbandry. Article 48 directs the State to organise agriculture and animal husbandry on modern, scientific lines, and in particular take steps for preserving and improving breeds, and prohibiting the slaughter of cows, calves, and other milch and draught cattle.

Article 48A – Protection of Environment

After drinking milk, protect the environment! Article 48A directs the State to protect and improve the **environment** and to safeguard forests and wildlife.

Article 49 – Protection of Monuments

Article 49 directs the State to protect **monuments, places and objects of national/artistic/historic importance** — our heritage and legacy.

Article 50 – Separation of Judiciary from Executive

Article 50 directs the State to take steps to **separate the judiciary from the executive** in the public services of the State.

Article 51 – Promotion of International Peace and Security

Article 51 directs the State to promote **international peace and security**, maintain just and honourable relations between nations, foster respect for international law and treaty obligations, and encourage settlement of international disputes by arbitration.



Memory Trick

"₹51 ka Prasad" — offer ₹51 worth of prasad so there's peace in the house → Article 51 = International Peace & Security!



Exam Tip

Quick recap chain: 45 Early Childhood → 46 SC/ST → 47 Nutrition/Prohibition → 48 Agri/Animal Husbandry → 48A Environment → 49 Monuments → 50 Judiciary-Executive → 51 International Peace.

Page 4 of 5

← Previous

Next →



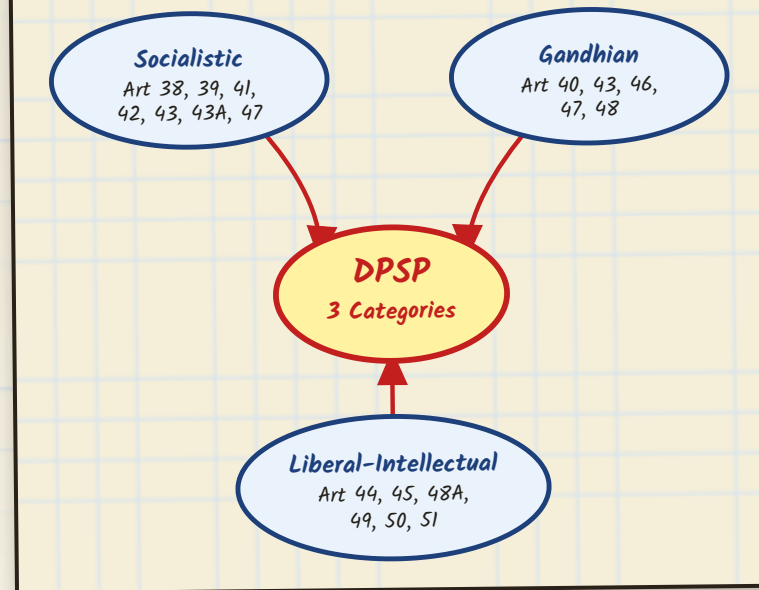
CLASSIFICATION OF DPSP + AMENDMENTS

DPSPs are classified into **three categories** for convenience of study: **Socialistic (Socio-economic)**, **Gandhian**, and **Liberal-Intellectual**. This classification is nowhere in the

Constitution itself — we do it purely as per convenience.



Fig 5: Three-Way Classification of DPSP



★ Gandhian Articles (Gandhiji's ideology)

- Article 40 — Panchayats (Gandhiji strongly promoted village Panchayats)
- Article 43 — Living wage / promotion of cottage industries
- Article 46 — Promotion of SC/ST educational & economic interests
- Article 47 — Prohibition of intoxicants
- Article 48 — Agriculture and animal husbandry

Socialistic Articles

- Article 38 — Welfare of the people, work and employment for all, wealth not concentrated in a few hands (equality promoted)
- Others like 39, 41, 42, 43, 43A, 47 also reflect socio-economic equality goals

Liberal-Intellectual Articles

- Article 44 — Uniform Civil Code
- Article 45 — Early Childhood Care
- Article 48A — Environment
- Article 49 — Monuments

- **Article 50** — Separation of Judiciary-Executive
- **Article 51** — International Peace and Security

Exam Tip

Questions on "which category does Article X belong to" are rare, but usually easy to reason out — Liberal-Intellectual ones are simply not tied to economics or Gandhian ideas at all.

Amendments That Added DPSPs — Only Four!

DPSP provisions have been added through **four Constitutional Amendments: 42nd, 44th, 86th, and 97th.**

- **42nd Amendment (1976)** — Added **four** provisions together: Article **39A** (free legal aid to the poor), Article **43A** (participation of workers in management of industries), clause **39(f)** (healthy development of children), and Article **48A** (protection of environment).
- **44th Amendment** — Added **clause (2)** to Article **38**: the State shall minimise inequalities in income, and endeavour to eliminate inequalities in status, facilities and opportunities.
- **86th Amendment (2002)** — Changed the subject matter of **Article 45** to Early Childhood Care and Education for children below 6 years (and added Article 21A as a Fundamental Right for ages 6-14).
- **97th Amendment (2011)** — Added **Article 43B**: promotion of cooperative societies.



Memory Trick

"Make the children of poor labourers protect the environment" → 39A (poor) + 43A (labourers) + 39(f) (children) + 48A (environment) — all from the **42nd Amendment, 1976!**



Why 43B connects to Article 19(1)(c) (tap to expand) ▼

Common Mistake

Don't mix up which amendment added what — remember only **4 amendments** ever added new DPSPs: **42nd** → **four at once**, **44th** → **clause in 38**, **86th** → **changed 45**,

97th → added 43B.

★ Exam-Ready Summary

- Part IV, Articles 36–51, borrowed from the Irish Constitution
- Non-justiciable but "fundamental in governance" (Article 37)
- Aim: Social & Economic Democracy (vs FR's Political Democracy)
- Ambedkar: "novel features"; K.C. Wheare: "cheque payable at bank's convenience"; Granville Austin & Wheare: "conscience of the Constitution"
- Three classifications: Socialistic, Gandhian, Liberal-Intellectual
- Four amendments added new DPSPs: 42nd, 44th, 86th, 97th

Memory Trick

Recall the full run in one breath: 36 State → 37 Non-justiciable → 38 Welfare → 39 LDC-PHC → 39A Legal Aid → 40 Panchayat → 41 Work → 42 Humane+Maternity → 43 Wage → 43A Participation → 43B Cooperative → 44 UCC → 45 Early Childhood → 46 SC/ST → 47 Nutrition/Prohibition → 48 Agri/Animal → 48A Environment → 49 Monuments → 50 Judiciary-Executive → 51 World Peace.

Page 5 of 5

← Previous

 Print Notes

Indian Polity · SSC / UPSC / Railways / Banking Exam Notes

StudyPlanner